

One of the named parties in the Plaintiffs complaint is Firstplus Financial, Inc., the named beneficiary in the previously recorded deed of trust. Plaintiff had previously served this entity by substitute service, on CT Corporation System, claiming this was the agent for service of process for Firstplus Financial, Inc. here in California. Plaintiff admits it has now learned that this entity is actually *not* the designated agent of First Plus Financial, Inc. **Therefore, based on the Court's own motion, and with the acquiescence of the Plaintiff, the Default of Firstplus Financial, Inc., filed May 9, 2024, is hereby vacated.** Based upon Corporations Code § 17701.16(c), and the Plaintiff's filed declarations detailing efforts to serve Firstplus Financial, Inc., the Court finds good cause to GRANT Plaintiff's ex parte application to allow substitute service on the Secretary of State as to this named defendant. Plaintiff has filed a proposed order which will be executed.

Based on the foregoing, the Court hereby continues today's Review Hearing to **Monday, May 5, 2025 at 9:00 a.m. in Department 64** for status of service and/or defaults on all parties. No appearance is necessary on today's calendar.

IN RE NOEL

Case Number: 24PB-0032752

Tentative Ruling on Petition to Approve Minor Compromise: This matter is on calendar for hearing on a Petition for Approval of Compromise of Claim. Petitioner is Gabriell Marie Noel, the mother of minor Nilsa Louise Noel. Probate Code § 3500 permits a parent to settle a claim for a minor so long as the claim is not against the parent and the petitioner is (1) Either parent if the parents of the minor are not living separate and apart or (2) The parent having the care, custody, or control of the minor if the parents of the minor are living separate and apart. It appears that the mother would qualify as the petitioner under at least option 2, however, the Court will inquire at the hearing.

California Rule of Court, Rule 7.950 states that a petition for court approval of a minor's compromise must contain a full disclosure of all information that has any bearing upon the reasonableness of the compromise. The Petition contains the necessary information. The Court notes this is not an expedited petition brought on Judicial Council Form MC-350EX. See CRC Rule 7.950.5. Therefore, hearing on the petition is required before approval. The person seeking approval of the settlement on behalf of the minor and the minor are required to appear at hearing, unless good cause is presented for their non-appearance. CRC Rule 7.952. The Court will direct Counsel to voir dire Petitioner regarding the following: the authority to act under Prob. Code § 3500(a); the terms of the settlement; and whether the Petitioner understands that once approved, the settlement is final and binding on the minor. Once satisfied, the Court intends to grant the Petition. If granted, the Court will execute the Order and schedule a hearing for review regarding confirmation of filing a verified copy of the annuity contract. **An appearance by the Petitioner and the minor is necessary on today's calendar.**

IN RE: OAKES

Case Number: 24CV-0206142

Tentative Ruling on Petition for Change of Name: Petitioners Aubry Oakes and Rebekah Oakes seek a name change for their minor daughter. All procedural requirements of CCP §§ 1275 et. seq. have been satisfied. The Petition is **GRANTED**. All future dates will be vacated, and the file closed upon the processing of the Decree Changing Name.

WYNHOFF VS. CITY OF REDDING

Case Number: 24CV-0204924

Tentative Ruling on Motions to Compel Further Responses: This is an action alleging retaliation under the California Fair Employment and Housing Act, sexual harassment, failure to prevent harassment and retaliation under the California Family Rights Act (“CFRA”). Defendant City of Redding has filed four motions to compel Plaintiff to provide further responses to discovery requests. The City seeks further responses to: 1) Form Interrogatories, Employment and General, Set One, 2) Form Interrogatories, General, Set Two, 3) Requests for Admission, Set One, and 4) Requests for Production, Set One.

Pursuant to CCP §§ 2030.300(b), 2031.310(b), 2033.290(b) motions to compel further responses must be accompanied by a meet and confer declaration. A meet and confer declaration in support of a motion shall state facts showing a reasonable and good faith attempt at an informal resolution of each issue presented by the motion. CCP § 2016.040. The Declarations of Ashley Riser filed in support of the four motions establish the following. In early September, the parties each propounded discovery. The parties thereafter agreed to at least two mutual extensions to respond. In late November, disputes arose regarding each side’s responses. The parties agreed via email to an additional mutual extension to serve supplemental responses by December 13, 2024. Plaintiff’s counsel thereafter revoked their agreement to the final mutual extension, which the City indicated would mean a revocation of the extension they had agreed to. The City indicated this would mean both parties must supplement by December 6, 2024. The City supplemented its responses on December 6, 2024. Plaintiff did not supplement by December 6, 2024. No further evidence of meet and confer efforts has been provided. Based on the meet and confer email correspondence provided to the Court, it does not appear Defendant reached out to Plaintiff regarding their promised supplemental responses between November 27, 2024, and the date these motions were filed on January 2, 2025. (See Declarations of Ashley Riser.)

The Supplemental Declarations of Ashley Riser, filed in support of Defendant’s Replies to each of these four discovery motions, indicate that Plaintiff has now served amended responses to each of the four discovery sets at issue. Plaintiff served the amended responses and a privilege log on January 17, 2025, two weeks after Defendant’s motions to compel were filed. However, Defendant’s Replies do not address whether Plaintiff’s amended responses remain deficient, or if they resolve some or all of the issues raised in these motions.

If Defendant contends that the amended responses remain deficient, then the parties are ordered to meet and confer either in person or by phone regarding the remaining deficiencies no later than February 7, 2025. After additional meet and confer efforts, Defendant must file and serve a supplemental declaration concisely outlining which issues raised in these motions, if any, still require Court intervention no later than February 11, 2025. Hearing on this matter is continued to **Tuesday, February 18, 2025, at 8:30 a.m. in Department 64.** If no disputes remain which require court intervention, Defendant should withdraw these motions at least 5 days prior to the continued hearing date.